

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MCS INDUSTRIES, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD. AND MSC
MEDITERRANEAN SHIPPING COMPANY SA, *Respondents.*

DOCKET NO. 21-05

Served: November 18, 2021

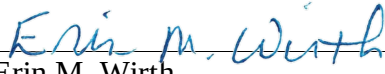
ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge.*

ORDER ENTERING CONFIDENTIALITY STIPULATION AND PROTECTIVE ORDER

On November 16, 2021, Complainant MCS Industries, Inc. and Respondent Mediterranean Shipping Company SA, collectively the “Parties,” filed a joint motion requesting entry of a confidentiality stipulation and protective order. The parties attached, as Attachment A, the proposed confidentiality stipulation and proposed protective order. The parties have jointly agreed to the terms and assert that it will protect “trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense.” Motion at 1.

The initial order issued in this proceeding states that: “The parties may agree and stipulate between themselves regarding treatment of confidential documents and information obtained during discovery that is not filed with the Commission. The parties may, but are not required to, file a courtesy copy of the agreement with the Commission.” Initial Order at 4.

The parties have established good cause to enter the confidentiality stipulation and protective order. Accordingly, the joint motion is **GRANTED**, and it is hereby **ORDERED** that the confidentiality stipulation and protective order shall be entered as an order in this proceeding.



Erin M. Wirth
Chief Administrative Law Judge